



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

August 08, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 7835
(THIRTY-SECOND REVISION)

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain DOT specification or UN certified packagings containing Division 2.1, 2.2, 2.3, 5.1, 4.3, and Class 3 and 8 materials on the same motor vehicle. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 177.848(d) in that the segregation requirements for materials transported in cylinders and multi-unit tank car tanks are waived except as specified herein; and the marking requirements in § 172.301(c) are waived.
5. BASIS: This special permit is based on the application of Versum Materials US LLC dated April 18, 2023, submitted in accordance with § 107.105 and the public proceeding thereon.

Tracking Number: 2023044783

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Various	2.1	As Appropriate	N/A
Various	2.2	As Appropriate	N/A
Various	2.3	As Appropriate	N/A, Hazard Zones A & B
Various	3	As Appropriate	N/A
Various	4.3	As Appropriate	I, II, III
Various	5.1	As Appropriate	I, II, III
Various	8	As Appropriate	I, II, III
Bromine	8	UN1744	I, Hazard Zone A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are DOT Specification cylinders, multi-unit tank car tanks (class 106A or 110A), UN1A1, UN1N1 or UN1H1 drums, UN6HH1 and UN6HA1 composite packagings, combination packagings with inner plastic receptacles, earthenware, plastic, and glass inner packagings, UN31H1 rigid plastic IBCs, UN31A metal IBCs, and UN31HA1 composite IBCs that are authorized in 49 CFR, Part 173, or DOT-SP 6543, DOT-SP 14204, DOT-SP 15267, as authorized for the specific hazardous material. Trailers and trucks used for transporting hazardous materials under this special permit must be in compliance with the following:

- (1) Trailers and trucks of an open bed type with steel side rails, having adequate strength for securing cylinders in an upright position. Vehicles may be equipped with canvas covers to protect against inclement weather. The top and side of the cover must be equipped with at least three 8" X 8" minimum nylon mesh vents providing ventilation equivalent to that shown on APCI's drawing No. IGDSK 4697A dated 6-30-81 on file with the Office of Hazardous Materials Safety (OHMS); or

(2) Trailers approximately 45 feet long with an enclosed portion not more than 20 feet long and the remainder being open bed type with steel side rails, having adequate strength for securing cylinders in the upright position; or

(3) Enclosed trailers to a maximum length of 53 feet. The sides, front, rear, and roof of trailers must be equipped with inlet and outlet vent openings with a minimum total area of one square foot per 1,000 cubic feet of trailer volume. The vents must provide ventilation at least equivalent to that shown on APCI's drawing No. 700876A on file with OHMS. Electrical systems within the trailer's interior must be designed such that they will not be a source of ignition. Trailer bulkheads and sides must be constructed to secure cylinders in accordance with Paragraph 7.b of this special permit.

b. OPERATIONAL CONTROLS:

(1) Each group of cylinders must be transported as follows:

(i) In vehicles secured in an upright position with securement assemblies equal in strength to one and one-half times the weight of each group of cylinders. A minimum of two securement assemblies must be used on each group of cylinders. Securement assemblies must not be employed when they do not adequately secure small cylinders. For this condition, small cylinders must be packed in wooden or fiberboard boxes and then secured against movement during transportation.

(ii) In pallets designed to transport 3500 pounds per pallet. The cylinders will be secured within the pallet by a webbing strap rated at 10,000 pounds.

(2) Cylinders and tank car tanks containing Division 2.3 Hazard Zone A materials must be stowed at least 10 feet away from cylinders or UN1A1, UN1H1, or UN1N1 drums, UN1HA1 or UN1HH1 composite packagings, combination packagings with glass earthenware, plastic, or glass ampoule inner packagings, UN31H1 IBCs, and UN31HA1 composite IBCs containing materials in Division 2.1, 5.1, 4.3, Class 3, or Class 8. The maximum gross weight of Division 2.3 Hazard Zone A materials carried on one vehicle must not exceed 8,000 pounds.

(3) Drivers and persons who load and unload the containers shipped under this special permit must be trained in the handling and loading of all types of compressed gases.

(4) Hazardous materials carried in the enclosed part of trailers authorized by paragraph 7.a.(2), or in trailers authorized by paragraph 7.a.(3) of this special permit must be loaded in compliance with § 177.848(e)(3).

(5) The transportation of bromine granted by this special permit is authorized in a DOT-SP 14204 or DOT-SP 15267 packaging. Packaging used for the transportation of bromine must be in full conformance with DOT-SP 14204 or DOT-SP 15267.

8. SPECIAL PROVISIONS:

a. The names of motor carriers, other than private carriers and Jack B. Kelly, Inc., must be on file with the OHMS. Motor carriers operating under the terms of this special permit must have a "satisfactory" safety rating as prescribed in 49 CFR Part 385.

b. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

c. Shipping papers must contain an entry, "DOT-SP 7835 Special Stowage Authorized." The markings requirements of § 172.301(c) are waived.

d. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

e. Shippers using the packaging covered by this special permit must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; all provisions of this special permit, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: ae